

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Headquarters (HQ)

Justification for an Exception to Fair Opportunity

Under the Commercial Satellite Data Acquisition (CSDA) Program
Indefinite Delivery Indefinite Quantity (IDIQ) Contract No. 80HQTR24DA004
Order No. 80HQTR25FA025

Description of the action being approved: This justification documents the basis for issuing a modification to an order under the Commercial Satellite Data Acquisition (CSDA) Program Indefinite Delivery Indefinite Quantity (IDIQ) Contract No. 80HQTR24DA004 with Maxar using an exception to the Fair Opportunity process.

Description of the supplies or services required to meet the agency's needs: This action is a firm-fixed price order for Atmospheric Compensation and high-resolution multispectral data products from Maxar's commercial Legion satellite constellations to evaluate for utility and quality. These data products were offered as an offering to the base IDIQ contract and have yet to be fully evaluated for the quality and utility of the data. The data evaluation will be combined with another science team's evaluation of Maxar data and provided input from inter-agency partners will contribute to the radiometric and geolocation accuracy evaluation. Products provided under the Public End User License Agreement (EULA) from the vendor will allow for the data to be disseminated to the broader stakeholder community. Existing NASA programs have data acquisition priority.

The total estimated price of the proposed order is \$1,000,000; and an estimated period of performance will of twelve (12) months from base award.

Identification of Exception to Fair Opportunity:

- ☐ FAR 16.505(b)(2)(i)(A), The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- ☒ FAR 16.505(b)(2)(i)(B), Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.
- ☐ FAR 16.505(b)(2)(i)(C), The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
- ☐ FAR 16.505(b)(2)(i)(D), It is necessary to place an order to satisfy a minimum guarantee.
- ☐ FAR 16.505(b)(2)(i)(E), For orders exceeding the simplified acquisition threshold a statute expressly authorizes or requires that the purchase be made from a specified source.

☐ FAR 16.505(b)(2)(i)(F) In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644(r)), contracting officers may, at their discretion, set aside orders for any of the small business concerns identified in 19.000(a)(3). When setting aside orders for small business concerns, the specific small business program eligibility requirements identified in part 19 apply.

Determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer's signature on this document indicates that the Contracting Officer has determined that the anticipated cost to the government will be fair and reasonable. The Contractor has an existing contract pricelist previously determined to be fair and reasonable. Prior to execution of the firm-fixed price order, an analysis will be performed comparing to the existing pricelist and similar, but not interchangeable, products of other CSDA IDIQ holders. The analysis will ensure that the final agreed-to pricing for the order is fair and reasonable. The proposed price(s) will be evaluated by the Contracting Officer's Representative and the Contracting Officer in conjunction with a management representative(s) of the Earth Science Division to determine that the price(s) associated with the unique data set and the identified supporting data and data use authorization are fair and reasonable.

Other Facts:

No additional market research was performed. See below for more information.

A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made:

The Agency will continue to examine the market for alternative solutions or new sources. At present, NASA has solicited interest annually and continues plans to formally re-engage the community every one to two years through its on-ramping efforts and in accordance with the contract as current contract holders complete the Evaluation Phase and are able to compete in the Sustainment Phase for Task Order awards.

Once the Evaluation Phase for this vendor is complete, they will advance to the Sustainment Phase where they will be able to compete amongst other CSDA vendors for future task orders. This could potentially increase future competition for these requirements once their data has been evaluated.